

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

----- X
ALEXANDRA OWENS,

Plaintiff,

**SUMMONS TO THE
VERIFIED COMPLAINT**

-against-

THE CITY OF NEW YORK; P.O. BILLY JEAN KUPPLER,
Shield # 16163; P.O. JOHN DOES # 1-5; and CAPTAIN JOHN
DOE # 1, the individual defendants sued individually and in their
official capacities,

Defendants.

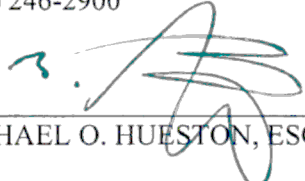
Index:

Basis of Venue: occurrence of
incident – 43rd Precinct, Bronx, New
York (900 Fteley Ave, Bronx, NY
10473)

----- X
To the above named defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer or, if the complaint is not served with this summons, to serve a notice of appearance on the plaintiff's attorney within twenty days after service of this summons exclusive of the day of service where service is made by delivery upon you personally within the state, or within thirty days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Brooklyn, New York
July 20, 2018

MICHAEL O. HUESTON, ESQ.
Attorney for Plaintiff
16 Court Street, Suite 1800
Brooklyn, New York 11241
(718) 246-2900
By: 

MICHAEL O. HUESTON, ESQ.

Defendants' addresses: THE CITY OF NEW YORK, 100 Church Street, New York, New York 10007; P.O. BILLY JEAN KUPPLER, Shield # 16163 and P.O. JOHN DOES # 1-5, 43rd Precinct, 900 Fteley Ave, Bronx, NY 10473; and CAPTAIN JOHN DOE # 1, Bronx Central Booking, 215 E 161st St, Bronx, NY 10451

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

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ALEXANDRA OWENS,

Plaintiff,

-against-

THE CITY OF NEW YORK; P.O. BILLY JEAN KUPPLER, Shield # 16163; P.O. JOHN DOES # 1-5; and CAPTAIN JOHN DOE # 1; the individual defendants sued individually and in their official capacities,

Defendants.

VERIFIED COMPLAINT

Index:

Basis of Venue: occurrence of incident – 43rd Precinct, Bronx, New York (900 Fteley Ave, Bronx, NY 10473)

Jury Trial Demanded

-----X
Plaintiff, Alexandra Owens, by and through her counsel, Michael O. Hueston, Esq., upon information and belief, alleges as follows:

PRELIMINARY STATEMENT

1. This is a civil rights, common law, and tort action in which plaintiff seeks relief for the violation of plaintiff's rights secured by 42 U.S.C. § 1983; and the Fourth, Fifth, Sixth, and Fourteenth Amendments to the United States Constitution; and the laws of the State of New York. Plaintiff's claims arise from an incident that arose on or about June 4, 2017. During the incident, the City of New York, and members of the New York City Police Department ("NYPD") subjected plaintiff to, among other things: unlawful search and seizure; false arrest and false imprisonment; assault; battery; unreasonable force; failure to intervene; conspiracy; denial of a fair trial; malicious prosecution; denial of medical care; unconstitutional conditions of confinement; negligence; negligent supervision, hiring, monitoring, training, retention and instruction of employees; intentional and negligent infliction of emotional distress; implementation and continuation of an unlawful municipal policy, practice, and custom; and

respondeat superior liability. Plaintiff seeks compensatory and punitive damages, declaratory relief, an award of costs and attorney's fees, pursuant 42 U.S.C. § 1988, and such other and further relief as the Court deems just and proper.

JURISDICTION & VENUE

2. Within 90 days of the incidents alleged in this complaint, plaintiff served upon defendant City of New York Notice of Claim setting forth the name and post office address of plaintiff, the nature of the claims, the time when, the place where and the manner in which the claims arose, and the items of damages or injuries claimed.

3. More than 30 days have elapsed since plaintiff's demands and/or claims were presented to defendant City of New York for adjustment and/or payment thereof, and the defendant has neglected and/or refused to make any adjustment and/or payment.

4. Defendant City of New York has not requested a physical examination of plaintiff. Plaintiff has satisfied all conditions precedent for the filing of this action. This action is being commenced within one year and ninety days of the date of the occurrences herein.

5. Venue is proper in the Supreme Court of the State New York, Bronx County, because the acts in question occurred in the State of New York, Bronx County, and the City of New York and individual defendants are subject to personal jurisdiction in Supreme Court of the State New York, Bronx County; and jurisdiction is proper because the Supreme Court of the State New York, Bronx County has jurisdiction over plaintiff's state law causes of actions, and plaintiff's federal causes of action pursuant to 42 U.S.C. § 1983.

PARTIES

6. Plaintiff Alexandra Owens is a resident of the State of New York, Bronx County, living at 1 Pierpointe Street, Apt. # 411F, Yonkers, New York 10701.

7. At all times herein, defendant City of New York is a municipal corporation organized under the laws of the State of New York, which violated plaintiff's rights as described herein.

9. At all times relevant, defendant City of New York maintained a police department known as the NYPD, which employed the individual defendants.

10. At all times alleged herein, defendants P.O. Billy Jean Kuppler, Shield # 16163; P.O. John Does # 1-5; and Captain John Doe # 1 were employed as police officers with 43rd Precinct, and/or Bronx Central Booking, located in Bronx County, New York, or other as yet unknown NYPD assignment, who violated plaintiff's rights as described herein.

11. The individual defendants are sued in their individual and official capacities.

STATEMENT OF FACTS

Incident

12. On June 4, 2017, several police officers operating from the 43rd Precinct, located in Bronx County, New York, including upon information and belief, the individual defendants P.O. Billy Jean Kuppler, Shield # 16163; and P.O. John Does # 1-5 ("the police"), at times acting in concert and at times acting independently, committed the following illegal acts against plaintiff.

13. On June 4, 2017 at approximately at 7:00 p.m., at and in the vicinity of the 43rd Precinct, Bronx, New York (900 Fteley Ave, Bronx, NY 10473), the police without either consent, an arrest warrant, a search warrant, probable cause, or reasonable suspicion that plaintiff had committed a crime unlawfully arrested plaintiff.

14. Earlier, on June 4, 2017, plaintiff was a passenger in her car when it was pulled over in the Bronx, New York, by police, including P.O. Kuppler.

15. The police arrested the driver of the car on the scene.

16. The police did not arrest plaintiff.

17. Plaintiff possessed no contraband, illegal substances, or weapons.

18. The police told plaintiff to go to the 43rd Precinct to pick up the driver's property and her car.

19. Plaintiff told the police that she was pregnant and feeling sick, and asked if they could drive her to the 43rd Precinct, instead of having to walk in the rain.

20. The police said no.

21. The police drove her car to the 43rd Precinct.

22. Plaintiff walked to the 43rd Precinct in the rain.

23. At the 43rd Precinct, plaintiff spoke to the police about getting her car and the driver's property and showed her identification to the police.

24. The police told plaintiff that they were processing the driver's arrest and asked her to wait.

25. Plaintiff sat in the 43rd Precinct for approximately 45 minutes to an hour waiting.

26. Plaintiff inquired with the police again about the status of the car and driver's property and told them that she was going to call a taxi.

27. A supervisor police officer said that plaintiff could not leave.

28. Plaintiff asked the supervisor police officer why she could not leave, but he did not respond.

29. While in the 43rd Precinct's lobby, without cause, justification, or a warrant, the police, including P.O. Kuppler, grabbed and arrested plaintiff, placing her in handcuffs.

30. The police used unreasonable force in arresting plaintiff.

31. The police arrested plaintiff without probable cause.

32. Plaintiff informed the police that she was pregnant.

33. The police did not inform plaintiff of the reason of her arrest.

34. The police placed her in a holding cell for approximately 4 or 5 hours.

35. Eventually, the police informed plaintiff that there was an outstanding warrant for a minor offense regarding a man named **Alexander Owens**.

36. The police showed a "print out" to plaintiff with the name **Alexander Owens**.

37. Plaintiff had been falsely arrested regarding this exact same issue before and had filed a notice of claim, and eventually a lawsuit against the City of New York, which has since been disposed through a settlement.

38. Inexplicably, the police ignored the obvious difference in the names.

39. The police ignored the fact that **Alexander** is male name.

40. The police failed to exercise reasonable diligence to satisfy, themselves, that they had placed the proper person under arrest.

41. Plaintiff pointed out the differences in the names to the police.

42. Plaintiff said that what the police were doing was not right, and reminded them again that she was pregnant.

43. Plaintiff asked the police for medical attention because she was feeling ill but the police ignored her, except for taking her to the bathroom where she vomited.

44. The police transported plaintiff to Central Booking for arraignment.

45. Plaintiff was detained at Central Booking for many hours, sick and ill.

46. Plaintiff asked for medical treatment at Central Booking because she was experiencing cramping, but her request were ignored.

47. The conditions at Central Booking were crowded, extremely cold, and sanitary drinking water was not provided, and Captain John Doe # 1 was aware of these unconstitutional conditions, but deliberately ignored them.

48. Upon information and belief, in order to cover up their illegal actions, the police, including P.O. Kuppler, pursuant to a conspiracy, initiated by police reports, false sworn complaint(s) and/or conversations, falsely and maliciously told the Bronx County District Attorney's Office that plaintiff had committed various crimes, and the District Attorney prosecuted plaintiff for among other things, possession of a controlled substance, and based on the police's false allegations.

49. The police falsely claimed that medication that plaintiff had on her person and that was in prescription bottles in her name were controlled substances illegally in her possession.

50. At arraignment, plaintiff was released on her own recognizance.

51. This case was dismissed on July 7, 2017, terminating in plaintiff's favor.

52. Also at the arraignment, the warrant regarding **Alexander Owens** was discussed, and the judge correctly observed – the obvious – that the warrant was not in plaintiff's

name and not for plaintiff; and plaintiff was not prosecuted for the conduct regarding the warrant.

53. In addition, the police, including P.O. Kuppler, also issued a desk appearance ticket against plaintiff, which upon information and belief, was forwarded to the Bronx District Attorney's Office, falsely and maliciously claiming that she unlawfully possessed marijuana, which upon information and belief, was also dismissed, before arraignment, terminating in plaintiff's favor.

54. Plaintiff was humiliated and embarrassed by the experience.

55. Plaintiff experienced anxiety, depression, and post-traumatic stress, and received medical treatment for these psychological injuries.

56. Plaintiff suffered physical injuries due to the experiences, including having a miscarriage approximately five days after her arrest.

57. Plaintiff suffered a post arraignment restraint on her liberty.

58. Plaintiff suffered financial loss.

General Allegations

59. Plaintiff did not resist arrest at any time during the above-described incidents.

60. Plaintiff did not violate any law, regulation, or administrative code; commit any criminal act; or act in a suspicious or unlawful manner prior to or during the above-described incident.

61. The individual defendants did not observe plaintiff violate any law, regulation, or administrative code; commit any criminal act; or act in a suspicious or unlawful manner prior to or during the above-described incident.

62. The individual defendants acted under pretense and color of state law and their individual and official capacities and within the scope of their employment. Said acts by said defendants were beyond the scope of their jurisdiction, without authority or law, and in abuse of their powers, and said defendants acted willfully, knowingly, and with the specific intent to deprive plaintiff of their rights.

63. As a direct and proximate result of defendants' actions, plaintiff experienced personal and physical injuries, pain and suffering, fear, an invasion of privacy, psychological pain, emotional distress, mental anguish, embarrassment, humiliation, and financial loss.

64. Plaintiff is entitled to receive punitive damages from the individual defendants because the individual defendants' actions were motivated by extreme recklessness and indifference to plaintiff's rights.

FIRST CLAIM

(UNLAWFUL SEARCH AND SEIZURE UNDER FEDERAL LAW)

65. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

66. Defendants unlawfully searched and seized plaintiff without a lawful warrant, cause, consent, and/or beyond the scope of any warrant.

67. Accordingly, defendants are liable to plaintiff for unlawful search and seizure under 42 U.S.C. § 1983; and the Fourth and Fifth Amendments to the United States Constitution.

SECOND CLAIM**(UNLAWFUL SEARCH AND SEIZURE UNDER STATE LAW)**

68. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

69. Defendants unlawfully searched and seized plaintiff without a lawful warrant, cause, consent, and/or beyond the scope of any warrant.

70. Accordingly, defendants are liable to plaintiff for unlawful search and seizure under New York State law.

THIRD CLAIM**(FALSE ARREST UNDER FEDERAL LAW)**

71. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

72. Defendants falsely arrested plaintiff without consent, an arrest warrant, probable cause, or reasonable suspicion that plaintiff had committed a crime.

73. Accordingly, defendants are liable to plaintiff for false arrest under 42 U.S.C. § 1983; and the Fourth Amendment to the United States Constitution.

FOURTH CLAIM**(FALSE ARREST & IMPRISONMENT UNDER STATE LAW)**

74. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

75. Defendants falsely arrested plaintiff without consent, an arrest warrant, probable cause, or reasonable suspicion that plaintiff had committed a crime.

76. The confinement was not otherwise privileged.

77. Accordingly, defendants are liable to plaintiff for false arrest and imprisonment under New York State law.

FIFTH CLAIM

(UNREASONABLE FORCE)

78. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

79. The individual defendants' use of force upon plaintiff was objectively unreasonable.

80. The individual defendant officers did not have an objective and/or reasonable basis to use any degree of force against plaintiff.

81. Those defendants who did not touch plaintiff, witnessed these acts, but failed to intervene and protect plaintiff from this conduct.

82. Accordingly, the defendants are liable to plaintiff for using unreasonable force, pursuant to 42 U.S.C. § 1983; and the Fourth Amendment to the United States Constitution.

SIXTH CLAIM

(ASSAULT)

83. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

84. Among other things as described above, individual defendants' battery, false arrest, and unreasonable use of force against plaintiff placed them in fear of imminent harmful and offensive physical contacts.

85. Accordingly, defendants are liable to plaintiff under New York State law for assault.

SEVENTH CLAIM

(BATTERY)

86. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

87. Among other things as described above, the individual defendants' false arrest, and use of force against plaintiff were illegal physical contacts.

88. Accordingly, defendants are liable to plaintiff under New York State law for battery.

EIGHTH CLAIM

(FAILURE TO INTERVENE)

89. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

90. Defendants had a reasonable opportunity to prevent the violations of plaintiff's constitutional rights, but they failed to intervene.

91. Accordingly, the defendants are liable to plaintiff for failing to intervene to prevent the violation of plaintiff's constitutional rights under 42 U.S.C. § 1983; and the Fourth Amendment to the United States Constitution.

NINTH CLAIM

(CONSPIRACY)

92. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

93. Defendants are liable to plaintiff because they agreed to act in concert to inflict an unconstitutional injury; and committed an overt act done in furtherance of that goal causing damage to plaintiff under 42 U.S.C. § 1983.

TENTH CLAIM

(DENIAL OF A FAIR TRIAL)

94. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

95. The individual defendants are liable to plaintiff because they intentionally conspired to fabricate evidence against plaintiff, including omitting and/or manipulating evidence, and suppressing exculpatory evidence and forwarded that false evidence to police officers, prosecutors, and the court.

96. The individual defendants violated the law by either testifying falsely, providing false information, and/or drafting and signing false criminal court complaints and/or false police reports and forwarding them to police officers, prosecutors and the court.

97. The individual defendants were on notice that creating fabricated evidence is a clear violation of law because it is well established that individuals who knowingly use false evidence to obtain a conviction act unconstitutionally, depriving plaintiff of liberty without due process of law or a fair trial, and the harm occasioned by such unconscionable actions are redressable in an action for damages under 42 U.S.C. § 1983, the Fair Trial Clause of the Sixth Amendment to the United States Constitution, and the Due Process Clause of the Fourteenth Amendment to the United States Constitution.

ELEVENTH CLAIM**(MALICIOUS PROSECUTION FEDERAL LAW)**

98. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

99. The individual defendants are liable to plaintiff for malicious prosecution because, pursuant to a conspiracy and acting with malice, the defendants initiated a malicious prosecution(s) against plaintiff by knowingly, intentionally, and maliciously providing false statements in complaints and police reports to police officers, prosecutors and/or the court(s), which alleged plaintiff had committed various crimes.

100. The individual defendants lacked probable cause to believe the above-stated malicious prosecution could succeed.

101. The individual defendants initiated the above-stated malicious prosecution in retaliation and to cover up their illegal and unconstitutional conduct.

102. The above-stated malicious prosecution caused a sufficient post-arraignment liberty restraint on plaintiff.

TWELFTH CLAIM**(MALICIOUS PROSECUTION STATE LAW)**

103. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

104. The individual defendants are liable to plaintiff for malicious prosecution because, pursuant to a conspiracy and acting with malice, the defendants initiated a malicious prosecution(s) against plaintiff by knowingly, intentionally, and maliciously providing false

statements in complaints and police reports to police officers, prosecutors and/or the court(s), which alleged plaintiff had committed various crimes.

105. The individual defendants lacked probable cause to believe the above-stated malicious prosecution could succeed.

106. The individual defendants initiated the above-stated malicious prosecution in retaliation and to cover up their illegal and unconstitutional conduct.

THIRTEENTH CLAIM

(DENIAL OF MEDICAL CARE)

107. Plaintiffs repeat and reallege all the foregoing paragraphs as if the same were fully set forth at length herein.

108. Defendants are liable to plaintiff because they ignored plaintiff's need for medical treatment for a serious medical issue and/or injury, or delayed such treatment, and the harm occasioned by such an act is redressable under the Fourteenth Amendment to the United States Constitution, and 42 U.S.C. § 1983.

FOURTEENTH CLAIM

(MONELL CLAIM)

109. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

110. Defendant City of New York, through a policy, practice and custom, directly caused the constitutional violations suffered by plaintiff.

111. Defendant City of New York through the NYPD and its officers, committed the following unconstitutional practices, customs and policies against plaintiff: (1) arresting innocent persons in order to meet productivity goals and without cause; (2) using

unreasonable force on individuals; (3) fabricating evidence against innocent persons; (4) subjecting plaintiff to unconstitutional conditions of confinement in Bronx Central Booking and/or by being deliberately indifferent to the unconstitutional conditions of confinement in Brooklyn Central Booking; and (5) denying medical care to individuals.

112. Upon information and belief, defendant City of New York, at all relevant times, was aware that the defendants were unfit officers who have previously committed the acts alleged herein, have a propensity for unconstitutional conduct, or have been inadequately trained.

113. Nevertheless, defendant City of New York exercised deliberate indifference by failing to take remedial action. The City failed to properly train, retrain, supervise, discipline, and monitor the individual defendants and improperly retained and utilized them. Moreover, upon information and belief, defendant City of New York failed to adequately investigate prior complaints filed against the individual defendants.

114. Further, defendant City of New York was aware prior to the incident that the individual defendants (in continuation of its illegal custom, practice and/or policy) would stop, arrest and prosecute innocent individuals, based on pretexts and false evidence, and subject individuals to unconstitutional conditions of confinement.

115. The existence of the aforesaid unconstitutional customs and policies may be inferred from repeated occurrences of similar wrongful conduct involving the individual defendants, placing the defendant City of New York on notice of the individual defendants' propensity to violate the rights of individuals.

116. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the NYPD were the moving force behind the constitutional violations suffered by plaintiff as alleged herein.

117. The City's failure to act resulted in the violation of plaintiff's constitutional rights as described herein.

FIFTEENTH CLAIM

(NEGLIGENCE)

118. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

119. Defendants are liable to plaintiff because defendants owed plaintiff a cognizable duty of care as a matter of law, and breached that duty.

120. Defendants are liable to plaintiff because defendants knew, or should have known, that the plaintiff was not the individual in the warrant, yet failed to act properly and take proper precautionary measures.

SIXTEENTH CLAIM

**(NEGLIGENT SUPERVISION, HIRING, MONITORING,
TRAINING, RETENTION AND INSTRUCTION OF UNFIT EMPLOYEES)**

121. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

122. Defendant City of New York is liable to the plaintiff because the occurrence and injuries sustained by plaintiff, were caused solely by, and as a result of the malicious, reckless, negligent, and/or intentional conduct of defendant City of New York, and DOC, its agents, servants and/or employees, as set forth above, without provocation on the part of plaintiff contributing thereto, specifically, the negligent and reckless manner in which said defendant hired, trained, supervised, controlled, managed, maintained, inspected, instructed, and retained its correction officers.

SEVENTHTEENTH CLAIM**(INTENTIONAL AND NEGLIGENT INFLICTION OF EMOTIONAL DISTRESS)**

123. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

124. That by virtue of the occurrence and defendants, individually and/or by their agents, servants and/or employees, negligently and/or intentionally inflicted emotional harm upon plaintiff.

125. The defendants' actions against plaintiff were extreme and outrageous and caused plaintiff severe emotional distress.

126. The defendants breached a duty owed to the plaintiff that either unreasonably endangered plaintiff's physical safety, or caused the plaintiff to fear for their own safety.

EIGHTEENTH CLAIM**(RESPONDEAT SUPERIOR)**

127. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

128. The individual defendants were acting within the scope of their employment when they committed the above-described acts against plaintiff, including falsely arresting and imprisoning, assaulting, battering, and maliciously prosecuting plaintiff.

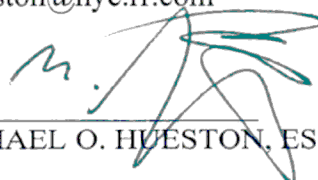
129. The City of New York is therefore vicariously liable to plaintiff under New York State law for the aforesaid torts.

WHEREFORE, plaintiff demands a jury trial and the following relief jointly and severally against the defendants; and demands judgment and compensatory damages, individually and/or collectively in an amount that exceeds the jurisdiction of all lower courts that would otherwise have jurisdiction as to the above-stated cause of action against all defendants; punitive damages in an amount to be determined at trial as and for the above-stated causes of action against the individual defendants; together with costs and disbursements of this action and legal fees pursuant to 42 U.S.C. § 1988.

DATED: Brooklyn, New York
July 20, 2018

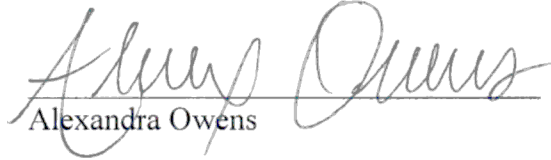
MICHAEL O. HUESTON, ESQ.
Attorney for Plaintiff
16 Court Street, Suite 1800
Brooklyn, New York 11241
(718) 246-2900
mhueston@nyc.rr.com

By:


MICHAEL O. HUESTON, ESQ.

VERIFICATION

I, Alexandra Owens, state under the oath, that I am the deponent in this action, and that I have read the Verified Complaint and that it is true to the knowledge of the deponent, except as to matters, alleged on information and belief, and that as to those matters I believe it to be true.


Alexandra Owens

STATE OF NEW YORK)

: SS:

COUNTY OF KINGS)

On the 20 day of July, 2018, before me personally came and appeared ALEXANDRA OWENS to me known and known to me to be the individual described in and who executed the foregoing instrument, and who duly acknowledged to me that he executed the same.


NOTARY PUBLIC

MICHAEL O HUESTON
Notary Public, State of New York
No. 02HU6073603
Qualified in Kings County
Commission Expires April 22, 2022

Index No.

SUPREME COURT OF THE STATE OF NEW YORK
BRONX COUNTY

ALEXANDRA OWENS,

Plaintiffs,

-against-

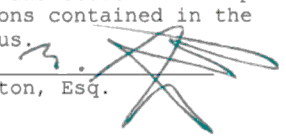
CITY OF NEW YORK, et al.,

Defendants.

SUMMONS AND VERIFIED COMPLAINT

MICHAEL HUESTON, ESQ.
Attorneys for Plaintiff
16 Court St., Suite 1800
Brooklyn, New York 11241
(718) 246-2900

Pursuant to 22 NYCRR 130-1.1, the undersigned, an attorney duly admitted to practice law in the State of New York, certifies that, upon information and belief based upon reasonable inquiry, the contentions contained in the annexed document are not frivolous.

Dated: 7/20/2018 Signature: 

Michael O. Hueston, Esq.

Due and timely, service is hereby
admitted.

Brooklyn, New York....., 2018

....., Esq.

Attorney for.....